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2026.PHHC.086976



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-33063-2026
Decided On: 08.06.2026

RAJVIR SINGH

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. JS Toor, Sr. Advocate and
Mr. Adhiraj Toor, Advocate, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.044 dated 04.04.2025 under Section 318(4), 338, 336(3), 340(2), 61 of the BNS (later on added Sections 316(4), 318, 61(2) of BNS (corresponding Sections 420, 467, 468, 472, 120A, 408, 415, 120-B IPC) and Section 13(1)(B) and 13(2) of the Prevention of Corruption Act, 1988, registered at Police Station Sirhind, District Fatehgarh Sahib.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the petitioner

himself is a victim of forgery, as his signatures have allegedly been fabricated for withdrawal of the amount, and that he has, in fact, suffered financial loss on account thereof.

The petitioner further submits that he is willing to hand over his mobile phone and to provide his specimen signatures, and is ready and willing to join the investigation and cooperate with the investigating agency.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Gorav Kathuria, DAG Punjab accepts notice on behalf of the respondent–State and is not in contravention to the above-said statement made on behalf of the petitioner.

3. Analysis

Considering the nature of allegations, the stage of investigation, the fact that no recovery is shown to be required from the petitioner, and his willingness to join and cooperate with the investigation as undertaken by him in para 7 of the present petition, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such

directions in the light of the facts of the particular case, as it may think fit, including-

- (i) a condition that the person shall make himself available for interrogation by a police officer as and when required;*
- (ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;*
- (iii) a condition that the person shall not leave India without the previous permission of the Court;*
- (iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.'*

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

08.06.2026

NainaRajput

Whether speaking/reasoned : Yes/No

Whether reportable : Yes/No